

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE MOHAMMED NIAS C.P.

MONDAY, THE 14TH DAY OF AUGUST 2023 / 23RD SRAVANA, 1945

W.P.(C) NO.26315 OF 2013

PETITIONER:

T.S.SUBRAMANIAN
"SUDARSANAM",
ANANDAVALLEESWARAM, KOLLAM.

BY ADVS.
SRI.P.K.SURESH KUMAR (SR.)
SRI.K.P.SUDHEER

RESPONDENTS:

- 1 THE STATE OF KERALA
REPRESENTED BY ITS SECRETARY,
DEPARTMENT OF REVENUE,
THIRUVANANTHAPURAM-695 001.
- 2 THE DISTRICT COLLECTOR,
KOLLAM-691 013.
- 3 THE TAHSILDAR,
KOLLAM TALUK, KOLLAM-691 001.

SMT. REKHA C. NAIR, GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON
14.08.2023, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

W.P. (C) NO.26315 OF 2013

JUDGMENT

Dated this the 14th day of August, 2023

The prayer in the writ petition is to quash Exts.P6 and P7 orders rejecting the claim of the petitioner for assignment of the plot in his possession.

2. Today when the matter is taken up, the learned Counsel for the petitioner submits that the petitioner has surrendered the land and also paid the arrears of rent. The above submission is recorded. It will be open to the Government to take steps in accordance with law, in case it is found that there are arrears outstanding and payable by the petitioner.

Subject to the above, Writ Petition is disposed of.

Sd/-
MOHAMMED NIAS C.P.
JUDGE

bpr

W.P. (C) NO.26315 OF 2013

APPENDIX OF WP(C) 26315/2013

PETITIONER'S EXHIBITS

- | | |
|----------------|--|
| EXHIBIT P1 | TRUE COPY OF G.O.MS.NO.398/RD DATED 17.5.1989 ISSUED BY GOVERNMENT OF KERALA, REVENUE (A) DEPARTMENT. |
| EXHIBIT P2 | TRUE COPY OF JUDGMENT DATED 19.10.2000 IN O.P.NO.1175/1993 PASSED BY THIS HON'BLE COURT. |
| EXHIBIT P3 | TRUE COPY OF G.O. (MS) NO.358/2006/RD DATED 18.12.2006 ISSUED BY GOVERNMENT OF KERALA, REVENUE (U) DEPARTMENT. |
| EXHIBIT P4 | TRUE COPY OF JUDGMENT DATED 31.10.2011 IN WP(C) NO.2872/2007 PASSED BY THIS HON'BLE COURT. |
| EXHIBIT P5 | TRUE COPY OF JUDGMENT DATED 23RD JULY 2012 IN W.A.NO.108/2012 PASSED BY THIS HON'BLE COURT. |
| EXHIBIT P6 | TRUE COPY OF G.O. (MS) NO.85/2013/RD DATED 11.3.2013 ISSUED BY REVENUE (U) DEPARTMENT OF KERALA. |
| EXHIBIT P7 | TRUE COPY OF NOTICE NO.B4-18044/99 DATED 16.5.2013 ISSUED BY THE 3RD RESPONDENT. |
| EXHIBIT P8 | TRUE COPY OF LETTER DATED 30.9.2013 SENT BY THE PETITIONER TO THE 3RD RESPONDENT. |
| EXHIBIT P8 (A) | TRUE COPY OF ACKNOWLEDGEMENT EVIDENCING RECEIPT OF EXT.P8. |
| EXHIBIT P9 | TRUE COPY OF LETTER DATED 31.3.2015 SENT BY THE PETITIONER TO THE 3RD RESPONDENT. |
| EXHIBIT P9 (A) | TRUE COPY OF ACKNOWLEDGEMENT EVIDENCING RECEIPT OF EXT.P9 |

W.P. (C) NO.26315 OF 2013

EXHIBIT P10 TRUE COPY OF LETTER DATED 18.3.2017 SENT
BY THE PETITIONER TO THE 2ND RESPONDENT.

EXHIBIT P10 (A) TRUE COPY OF RECEIPT EVIDENCING POSTING
OF EXT.P10.

EXHIBIT P11 TRUE COPY OF LETTER DATED 01.04.2017 SENT
BY THE PETITIONER TO THE 2ND RESPONDENT.